

BEFORE THE
FEDERAL MARITIME COMMISSION

Docket No. 24-16

SAMSUNG ELECTRONICS AMERICA, INC.

v.

COSCO SHIPPING LINES CO., LTD.

v.

SAMSUNG ELECTRONICS CO., LTD, SAMSUNG SDS ASIA PACIFIC PTE LTD., AND
SAMSUNG ELECTRONICS LOGITECH CO., LTD.

**COSCO’S REPLY IN SUPPORT OF MOTION TO VOLUNTARILY DISMISS
COUNTERCLAIM AND THIRD-PARTY COMPLAINT**

Complainant Samsung Electronics America, Inc. (“SEA”) and the third-party respondents purport to consent to COSCO’s Motion to Voluntarily Dismiss Counterclaim and Third-Party Complaint (the “Motion”), but contrary to COSCO’s Motion, demand that the dismissal be with prejudice. Their demand is not supported by the facts, is contrary to law, and should be denied. SEA and the third-party respondents concede that they would not suffer legal prejudice from dismissal without prejudice. As a result, the Presiding Officer should grant COSCO’s Motion.

ARGUMENT

A. COSCO moved for a dismissal without prejudice.

COSCO filed its motion under Commission Rule 72(a)(3), which provides: “an action may be dismissed at the complainant's request only by order of the presiding officer, on terms the presiding officer considers proper.... *Unless the order states otherwise, a dismissal under this*

paragraph is without prejudice.” 46 C.F. R. § 72(a)(3) (emphasis added). COSCO moved for a voluntary dismissal (Mot. at 1) and included a proposed Order—“So Ordered” with a signature block for the Presiding Officer. *Id.* at 2. COSCO’s Motion did not provide for dismissal with prejudice, and thus it was, under Rule 72(a)(3), a motion for dismissal without prejudice. SEA and the Third-Party Respondents do not argue to the contrary.

B. There is no basis for dismissal with prejudice.

In their nearly identical filings, SEA and the Third-Party Respondents cite no authority for their demand for a dismissal with prejudice. Indeed, they concede that they are “*not claiming prejudice* from dismissal...” SEA Response at 1 (emphasis added); *accord*, Third Party Respondents’ Response at 1 (“*not claiming prejudice* by way of the dismissal....”) (emphasis added). Instead, they argue they were prejudiced because they expended time on motions to dismiss, and they seek to “prevent these claims from being advanced in the future.” SEA Response at 2; Third-Party Respondents’ Response at 2. Those are not grounds for dismissal with prejudice.

When applying Rule 41, the corresponding provision of the Federal Rules of Civil Procedure to Commission Rule 73, the federal courts, including the Courts of Appeals for District of Columbia Circuit, hold that where a claimant moves for a voluntary dismissal, the request must be granted and the claims dismissed without prejudice unless the court finds that dismissal would “inflict clear legal prejudice on a defendant.” *E.g., Kellmer v. Raines*, 674 F. 3d 848, 851 (D.C. Cir. 2012); *Conafay v. Wyeth Labs.*, 841 F.2d 417, 419 (D.C. Cir. 1988) (collecting cases). SEA’s and Third-Party Respondents’ admission that they are “not claiming prejudice” from dismissal dooms their position.

In *Kellmer*, the plaintiff moved to dismiss its claims while the defendant’s motion to dismiss was pending. The D.C. Circuit reversed the district court’s dismissal with prejudice,

because the defendant would “suffer no legal prejudice” from dismissal. If the claims were brought again, the defendant could assert its defenses. 674 F. 3d at 851. In *Conafay*, the D.C. Circuit similarly reversed the district court’s dismissal with prejudice, flatly rejecting the notion that the potential of defending a second action constituted legal prejudice.¹ And in *International Express Trucking, Inc. v. COSCO Shipping Lines Co., Ltd.*, Dkt. No. 24-20, the Presiding Officer granted the complainant a dismissal without prejudice where respondent, whose motion to dismiss was pending, had “not shown ... legal prejudice from dismissal without prejudice.” Initial Decision Granting Mot. to Dismiss Without Prejudice (Doc. 25) (ALJ Sept. 17, 2025) at 4.

Furthermore, other factors confirm that dismissal without prejudice is appropriate. There has been virtually no discovery on COSCO’s counterclaim and third-party complaint. SEA’s and the third-party respondent’s motions to dismiss are *sub judice*, and the Presiding Officer’s August 13, 2025 Memorandum Order (Doc. 66) bars discovery on COSCO’s claims against the third-party respondents (which are interwoven with COSCO’s counterclaim) until their motions to dismiss are decided. And much remains on SEA’s claims against COSCO: depositions and expert disclosure have not begun. COSCO seeks to dismiss its claims without prejudice to streamline this action, focus on SEA’s claims, and avoid additional time and expense.²

CONCLUSION

¹And a later D.C. Circuit case noted in holding that an action had been dismissed without prejudice that “[B]ecause dismissal of claims against a defendant rarely prejudices that party, the grant of a voluntary dismissal is virtually automatic.” *Blue v. D.C. Pub. Sch.*, 764 F.3d 11, 19 (D.C. Cir. 2014).

²SEA’s and third-party respondents’ apparent reliance on their March 27 letters to counsel for COSCO (SEA Response, Ex. 1 and Third-Party Respondents’ Response, Ex. 2) is puzzling. Neither SEA nor the third-party respondents requested COSCO to dismiss its claims with prejudice.

COSCO respectfully requests that the Presiding Officer dismiss COSCO's counterclaim and third-party complaint without prejudice.

Dated: April 12, 2026

Respectfully submitted,

/s/ Gordon L. Lang

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CERTIFICATE OF SERVICE

I hereby certify that on this 12th day of April, 2026, a true and correct copy of the foregoing **Reply in Support of COSCO's Motion to Voluntarily Dismiss Counterclaim and Third-Party Complaint** was served by electronic mail on all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020 as follows:

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